V

(Announcements)

COURT PROCEEDINGS

COURT OF JUSTICE

Judgment of the Court (Fifth Chamber) of 11 December 2014 — European Commission v Kingdom of Spain

(Case C-678/11) ([1])

(Failure of a Member State to fulfil obligations — Article 56 TFEU and Article 36 of the EEA Agreement — Services offered in Spain by pension funds and insurance companies established in another Member State — Occupational pension schemes — Obligation to designate a tax representative resident in Spain — Restrictive nature — Justification — Effective fiscal supervision and prevention of tax avoidance — Proportionality)

(2015/C 046/02)

Language of the case: Spanish

Parties

Applicant: European Commission (represented by: F. Jimeno Fernández and W. Roels, acting as Agents)

Defendant: Kingdom of Spain (represented by: A. Rubio González, acting as Agent)

Intervener in support of the defendant: French Republic (represented by: G. de Bergues, D. Colas and J.-S. Pilczer, acting as Agents)

Operative part of the judgment

The Court:

1) *Declares that, by having adopted the provisions of Article 46(c) of Royal Legislative Decree 1/2002 approving the consolidated text of the Law governing pension schemes and funds (Real Decreto Legislativo 1/2002, por el que se aprueba el texto refundido de la Ley de Regulación de los Planes y Fondos de Pensiones) of 29 November 2002, and Article 86(1) of Royal Legislative Decree 6/2004 approving the consolidated text of the Law on the organisation and supervision of private insurance (Real Decreto Legislativo 6/2004, por el que se aprueba el texto refundido de la Ley de ordenación y supervisión de los seguros privados) of 29 October 2004, pursuant to which pension funds established in Member States other than the Kingdom of Spain and offering occupational pension schemes in that Member State and insurance companies operating in Spain under the freedom to provide services are required to appoint a tax representative resident in that Member State, the Kingdom of Spain has failed to fulfil its obligations under Article 56 TFEU;*

2) *Dismisses the action as to the remainder;*

3) *Orders the European Commission, the Kingdom of Spain and the French Republic to bear their own costs.*

([1]) OJ C 73, 10.3.2012.